

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an application for
Appeal under and in terms of Article
138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka**

Officer-In-Charge,
Unit No-06,
Police Special Investigation Unit,
Narahenpita,
Colombo

Complainant

Court of Appeal No.
CA/PHC/140/2023

Vs.

High Court of Colombo
Case No: HCRA 52/2023

M.C. Fort Case No:
8160/01/12

Praveena Ruwananda Weththasinghe

Accused

AND NOW BETWEEN

Praveena Ruwananda Weththasinghe

Accused- Petitioner

Vs.

1. Officer-In-Charge,
Unit No-06,
Police Special Investigation Unit,
Narahenpita,
Colombo

Complainant – Respondent

2. Hon. Attorney General,
Attorney General's Department,
Colombo 12

Complainant – Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Avinda Silva for the Appellant

 Malik Azeez, SC for the Respondents

Argued on: 23.06.2026

Decided on: 30.06.2026

Judgment

Amal Ranaraja. J.,

1. The accused petitioner-appellant (hereinafter referred to as the 'appellant') has been named as the accused in the Colombo Magistrates Court in Case No. 8160/01/12. Upon the appellant appearing before Court as the accused in that case, the learned Magistrate has proceeded to frame charges against him. Thereafter, the charges have been read out to the appellant. The appellant has pleaded not guilty.
2. Accordingly, the learned Magistrate has proceeded with the case (trial) against the appellant. Midway through the proceedings, the appellant has absconded. The learned Magistrate has conducted an inquiry, and being satisfied that the appellant was absconding and evading the

jurisdiction of the Court, has ordered that the case (trial), proceed in the appellant's absence.

3. Upon the conclusion of the case (trial), the learned Magistrate has convicted the appellant of the charges and issued a sentencing order. Being aggrieved by both the conviction and the sentencing order, the appellant has filed an application for revision in the High Court of Colombo, seeking that the learned Magistrate's conviction and sentencing order be revised and set aside. The learned High Court Judge of Colombo has dismissed the application. Aggrieved by that order, the appellant has preferred the present appeal to this Court.
4. Contumacious conduct refers to behaviour that is deliberately disobedient or rebellious, particularly in a legal or authoritative context. In legal proceedings, such conduct often manifests as contempt of Court, where an individual wilfully disregards the Court's authority, orders or proceedings.
5. Such behaviour can undermine the rule of law and the administration of justice. For instance, a person who refuses to comply with a Court order, such as failing to provide necessary documents or not attending a scheduled hearing, exhibits contumacious conduct. This defiance not only disrupts the legal process but also poses challenges for judges and legal practitioners striving to uphold the law.
6. The appellant, by absconding from Court, has wilfully disregarded the Magistrates Court's authority. The conduct undermines the rule of law and obstructs the proper administration of justice. It amounts to contumacious behaviour, a deliberate and defiant refusal to comply with the Magistrates Court's processes and orders. By choosing to evade the Court rather than participate in the proceedings, the appellant has placed himself beyond the reach of the legal process and has shown open disrespect for the judicial system.

7. Absconding is not a mere procedural lapse or misunderstanding. It is a conscious act that frustrates the Court's ability to manage the case efficiently. It also creates practical prejudice including delay, increased costs, and difficulty in enforcing orders, all of which impair public confidence in the justice system. Such behaviour is properly characterized as contumacious because, it reflects wilful disobedience and an attitude of defiance towards the authority of Courts.
8. In these circumstances, the appellant could not have reasonably sought the High Court's assistance by way of discretionary relief, while simultaneously refusing to submit to the Magistrates Court's jurisdiction and proceedings. The integrity of the judicial process requires that parties respect and comply with Court directions. Deliberate absconding strikes at the heart of that requirement.
9. In *Sudharman De Silva vs AG (1986) 1 SLR 9 at pages 13 and 14*, Sharvanana CJ has held as follows;

"The Court of Appeal has endorsed and applied the following observation of Roskill, C. J. in the case of Robert Edward Wynyard: "To grant this application at this stage would, in the view of this court, be to put a premium on prisoners jumping bail; it may even have the effect of encouraging others to do so. It might also have as a side effect, increasing the reluctance of a court in a very long trial to grant bail lest the applicant's conduct be repeated by others. To put a premium on jumping bail is something which this court is not for one moment prepared to countenance... the applicant has brought this entirely on his own head, and he must now take the consequences. The application therefore is refused." In my view this quotation was appropriate in the context in which it was uttered, namely where an application to court was made for the exercise of a discretion i.e. extension of time within which to apply for leave to appeal, in favour of the applicant.

Contumacious conduct on the part of the applicant is a relevant consideration when the exercise of a discretion in his favour is involved, but not when he asserts his statutory right to appeal and is not asking for the favour of any permission.”

10. In such circumstances, I am not inclined to interfere with the disputed order of the learned High Court Judge of Colombo made in Case No. HCRA 52/2023, dated 04th July 2023, and proceed to affirm the same.

11. I dismiss the appeal but make no order regarding costs.

Appeal dismissed.

12. The Registrar of this Court is directed to send this Judgement to the High Court and the Magistrates Court in Colombo for information.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal